

SENATE No. 2367

The Commonwealth of Massachusetts

PRESENTED BY:

Julian Cyr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to affordable car rentals.

PETITION OF:

NAME:

Julian Cyr

DISTRICT/ADDRESS:

Cape and Islands

SENATE No. 2367

By Mr. Cyr, a petition (accompanied by bill, Senate, No. 2367) of Julian Cyr for legislation to prohibit the lease of car rentals registering the distance of miles traveled, which does not register such distance with substantial accuracy. Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to affordable car rentals.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 32C of chapter 90 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking the first paragraph and inserting in place thereof
3 the following paragraph:-

4 No person engaged in the business of leasing motor vehicles or trailers under the "drive-
5 it-yourself" system, so called, wherein the amount of the rental is determinable in whole or in
6 part by the distance such motor vehicles or trailers travel or any similar system including rentals
7 based on daily, weekly, hourly or monthly rental rates, shall lease any such vehicle whereto is
8 attached a hubodometer or other mechanical device for the purpose of registering the distance
9 that such vehicle travels which does not register such distance with substantial accuracy, nor
10 shall any such person, herein and in the following three sections called the lessor, knowingly
11 deceive any lessee of any such vehicle under any such system, herein and in the following three
12 sections called the lessee, as to the distance which such vehicle has traveled under the lease, or

13 make or collect a charge for the use thereof based wholly or in part on such deception, or lease
14 any such vehicle for operation on any public way by any person whom he knows or has reason to
15 believe to be under the influence of intoxicating liquor or of any drug. No lessor shall lease any
16 motor vehicle or trailer until the lessee shows that he or his authorized operator is the holder of a
17 duly issued license to operate the type of motor vehicle or trailer which is being leased. Further,
18 no lessor is required to verify such license with the Registry of Motor Vehicles or via any other
19 electronic services.

20 SECTION 2. Section 32E of said chapter 90, as so appearing, is amended by striking the
21 title and replacing it with the following title:-

22 Section 32E: Leasing motor vehicles on mileage basis; operation of vehicles or use of
23 trailers; insurance coverage; vehicles leased on daily, weekly, hourly or monthly rental rate

24 SECTION 3. Said section 32E, as so appearing, is further amended by striking the second
25 paragraph and inserting in place thereof the following paragraph:-

26 Every lessor shall provide and maintain, during such time as he engages in the business
27 of leasing motor vehicles under any system referred to in section 32C, a motor vehicle liability
28 policy or bond or deposit up to the minimum financial requirements imposed on owners or
29 registrants, on a secondary or contingent basis if the lessee or operator does not have a motor
30 vehicle liability policy, or other coverage, which, in addition to providing indemnity, protection
31 or security for personal injuries, shall, except in the case of vehicles leased for a term of more
32 than 30 days, further provide indemnity, protection or security for damage to property as
33 required by the provisions of this chapter. If another valid and collectible liability policy or other

34 form of financial security satisfies the minimum financial requirements imposed on owners or
35 registrants, a lessor's obligation under the law is satisfied.

36 SECTION 4. Section 34M of said chapter 90, as so appearing, is hereby amended by
37 inserting after the word "section 34A", each time it appears, the following words:- "or 32E".